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June 24, 2026

VIA EEOC RESPONDENT PORTAL

Jacquie Jones-Mounts
Acting Local Director
Greenville Local Office
United States Equal Employment Opportunity Commission

Re: Response to Charge of Discrimination
Complainant: Elizabeth Lord
Respondent: Blackstream International Real Estate
EEOC Charge No.: 436-2026-00698

Dear Ms. Jones-Mounts:

This letter is in reference to the above-captioned Complaint filed by Elizabeth Lord. This law firm represents the Respondent/Employer Blackstream International Real Estate in this Charge as well as Contender Development, Inc., in Charge No. 436-2026-00670, in which Lord has asserted identical allegations. This letter together with the attachments constitute the Company's response to Lord's current Charge.¹

In her Charge, Lord alleges that she was discriminated and retaliated against in violation of the Age Discrimination in Employment Act. Blackstream denies the allegations contained in her Charge and maintains that any and all actions taken against Lord were done so for legitimate, non-discriminatory and non-retaliatory reasons. As set forth below, Lord cannot establish her high burden under the ADEA that *but for* her age, she would have been treated in any other manner.

¹ By filing this response, the Company does not waive any legal defenses it may have to the Charge. For example, the Company may raise jurisdictional procedural defects as complete or partial defenses to the Charge. Additionally, the Company may present and rely on additional facts or matters not set forth in this response. At a later date, if such presentation is necessary, the Company also reserves the right to supplement this response to address additional facts, information, or other matters, as the circumstances may deem appropriate.



II. POSITION STATEMENT

A. Blackstream Is an Equal Opportunity Employer

Blackstream is firmly committed to equal employment opportunity and providing a work environment in which all individuals are treated with respect and dignity. The Company is committed to providing all employees and applicants equal opportunity in employment and a work environment free from all forms of discrimination, harassment, and retaliation. The Company's relevant non-discrimination and harassment policy is attached as Exhibit 1.

B. Lord's Employment with the Company

Lord began her employment with Blackstream International Real Estate, LLC ("Blackstream")² in July 2022 as Marketing Director. In the Spring of 2025, the relationship between Lord and one of her co-workers, Haley Cape³, had deteriorated to the point where it was decided that Lord would be offered the opportunity to move over to Contender full time in April 2025. Despite the fact that both Lord and Cape both reported to Christine Brodsky, Lord felt that Cape was holding clandestine meetings with Brodsky and Michael Mumma, Blackstream's Chief Executive Officer. No such clandestine meetings occurred and even if they did, Cape would have been free to meet directly with higher level management on projects she was working on. Lord also began demanding that Cape keep her fully informed of all the work she was doing. In essence, Lord viewed Cape as a subordinate and began treating her as such despite the fact that Cape did not report to Lord. This increasingly caused friction between the two.

At around this same time, Blackstream was experiencing increased demand for graphic design centric services in connection with the digital marketing of homes, a skill that more clearly aligned with Cape's talents. Contender had also been experiencing significant growth and had a need for a full-time Marketing Director who could focus on global brand strategy across several of Contender's business lines; this fit nicely within Lord's skills and experience. However, Lord was not "told" that she was being transferred as she alleges in her Charge. Instead, management met with Lord to discuss the opportunity for this transition prior to that date and gave her the option to transition over to Contender or remain in her current role at Blackstream⁴. Lord responded that she wanted the new title of "Chief Marketing Officer"⁵ and to be included in high level management meetings. In essence, she sought to expand the scope of her role. The Company did

² Blackstream is a residential real estate brokerage firm which is a licensee of Christie's International Real Estate. Contender and Blackstream are separate entities with some overlap in ownership. Contender is a real estate development firm. Although Lord was employed by Blackstream initially, her role included performing marketing services for **both** Blackstream and Contender.

³ Cape was hired in August 2023 to perform administrative functions and graphic design work. Her title was that of Services and Experiences Coordinator. Both Cape and Lord reported to Christine Brodsky, Blackstream's Chief Operating Officer.

⁴ Contender accommodated Lord when she made the transition. Lord was presented with Contender's standard offer of employment letter. She objected to the non-compete provision. It was removed, but she still refused to sign. Lord also refused to sign the standard employee handbook acknowledgment.

⁵ No such position exists.

not, however, feel that her vision of the position aligned with that of the Company given the nature of her position and duties which would not change with her transition to Contender. Lord further suggested working with the Company as an independent contractor but her proposed rate would have resulted in her receiving substantially higher compensation. Ultimately, Lord accepted and transitioned to her role with Contender on May 1, 2025. Lord's new role did not result in a decrease in compensation, and her duties and responsibilities remained largely the same.

C. Lord's Complaint and the Company's Response

On November 14, 2025, Lord provided her direct manger, Thomas Phillips, Chief Growth Officer, a letter in which she complained that she was being discriminated against, harassed, and retaliated against based on her age, and that she was being "constructively discharged" from her position.⁶ The letter set forth a laundry list of items that she claimed were evidence of her claims such as an alleged comment made by CFO Peter Reinert about why she was so concerned about her job title (recall she requested the title of Chief Marketing Officer) "at her age" that was allegedly made in an April 25, 2025 meeting with Ford Elliott, Chief Executive Officer, Cameron Aldridge, Human Resources Director, and Reinert; an alleged age-related comment she overheard other employees saying about another employee; and her belief that another employee "disclosed her age" causing her "extreme embarrassment." Lord concluded her complaint with a demand of a \$350,000.00 severance package.

Lord's Complaint was then provided to Aldridge, Human Resources Director. Aldridge conducted an investigation into her claims and provided her with a response on November 24, 2025. In that response, Aldridge explained that a number of the concerns that Lord raised in her complaint were duplicative of concerns that had previously been raised and addressed by the Company. However, Aldridge specifically addressed Lord's age-related allegations. With regard to Lord's claim that Reinert made a comment about her age in the April 25, 2025 meeting, Aldridge explained that Reinert denied making any comments. Aldridge further pointed out that he was also in that meeting and that he had no recollection of Reinert making any comments about Lords' age. Aldridge then explained that the comment about an older worker that she believed she overheard was incorrect. He explained that one of the employees Lord alleged to have been involved was not present for that conversation. Instead, Aldridge explained that he was involved in that conversation with another employee and they were discussing when they both worked in the hotel industry and how they preferred to hire older employees because of their skills and dependability. Lord responded by initially admitting that she may have misremembered the conversation, only to later walk that back by insisting she overheard something. Finally, Aldridge explained that Cape – the employee who allegedly "disclosed" Lord's age – denied that she made any such comment and that Cape did not know Lord's age. Aldridge concluded the Company's response by stating that the Company declined to discuss a severance with her and, instead, hoped that she would continue working with the Company. A copy of this response is attached as Exhibit 2.

⁶ It should be noted that at the time of this complaint, Lord was still employed with the Company and there was no action against her or discussions of her termination. Indeed, Lord is still employed with the Company in her same position. Therefore, she could not have been "constructively discharged."

D. Lord's 2025 Evaluation

On October 17, 2025, a couple of weeks prior to her complaint to the Company, Lord completed the self-evaluation portion of her 2025 employee performance review. This was the first evaluation Lord had for her new role as Director of Marketing for Contender. Phillips, Lord's supervisor, then completed his portion of the evaluation and met with Lord to discuss her performance. This meeting took place on December 15, 2025 – a few weeks after Lord provided Phillips with her complaint. Phillips gave Lord the highest performance rating – “excellent” – in each category and gave Lord nothing but positive comments and feedback on her review. A copy of Lord's 2025 performance review is attached as Exhibit 3. Further, Phillips recommended Lord receive a 5% increase in her compensation, which she received retroactive to January 1, 2026 as is the case with all employees who earned increases this year.

E. Contender Counsels Lord for False Information

Prior to Lord's annual performance review meeting, Phillips and Aldridge discussed a separate issue with Lord. On December 8, 2025, an employee of Blackstream sent Reinert a text in which the employee stated that Lord had told him that Contender was “out of money and they couldn't make payroll.” Because of this, the employee said Lord told him he should start looking for other work. Lord's statement was entirely false and, for obvious reasons, concerned Reinert. Because of the seriousness of the false statements Lord had allegedly made about the Company's ability to pay its employees, Aldridge asked Lord about the alleged comments. Lord did not deny that she made the statements and claimed that another employee – Stuart Owen⁷ – had made similar comments. Lord was counseled that her statement about the financial situation of the Company was false and counseled not to discuss such false statements in the future. The counseling was documented as a “verbal warning” and had no impact on her evaluation, her compensation, job duties or otherwise. A copy of this verbal warning is attached as Exhibit 4. The group then continued the meeting to discuss Lord's annual performance evaluation, as discussed above.

Because Lord told Aldridge and Phillips that Owen made similar statements, Aldridge met with Owen the following day, December 16, 2025, to discuss Lord's allegation. Although Aldridge did not disclose that Lord had reported his alleged comment, he did explain that concerns were raised about him making comments about the Company's financial status. At the time, Owen denied making any statements similar to Lord's; however, he did admit to telling some employees that the Company was in a “holding pattern” on some projects, but denied telling other employees to consider finding other employment. Aldridge and Owen exchanged emails confirming this discussion and Owen's denial of Lord's allegations. A copy of this email exchange is attached as Exhibit 5. Although Owen initially represented that he had never made such comments, the Company later received information from another employee which contradicted Owen's response to the Company. The Company then issued a warning similar to Lord's to Owen.

⁷ Owen is 34 years old.

III. COMPANNY'S RESPONSE TO LORD'S CLAIMS

As evidenced by the information provided in this Response and the Exhibits attached hereto, Lord has not – and cannot – meet her “but for” burden to show discrimination or retaliation under the ADEA.

First, Lord has failed to show any adverse employment action was taken against her. Lord's transition from Blackstream to Contender resulted in no changes in her compensation, pay, or other benefits or conditions of employment. That decision was based primarily on the Company's need for a full-time Marketing Director dedicated to Contender. Following her transition, Blackstream no longer had a Marketing Director and, therefore, her role with that entity was not assumed by a younger employee as she alleges.

Second, the verbal warning that Lord received was not an adverse employment action as it has had no impact whatsoever on her employment with Contender. The Company was notified by a concerned employee that Lord had told them that the Company could not afford payroll. This statement was blatantly false, and Lord had no basis or reason to make such a statement. It understandably created concern not only on the part of the employee who raised the issue, but the Company's management. When confronted with the comment, Lord did not deny she made it. Because Lord admitted to making a statement – that was false – about the Company, Contender had a legitimate business reason for counseling Lord against making false statements in the future. This had nothing to do with her age, and this is evidenced by the fact Contender then issued a verbal warning to Owens – who is younger than Lord - after the Company confirmed that he too made false comments about the Company's financial status.

Third, Lord appears to put much stock in the age-based comment allegedly made by Reinert. As stated above, Reinert and the Company absolutely deny any such comment was made. Assuming for the sake of argument only that such a comment was made, it is not evidence of age-based animus because (a) Reinert is 67 years old and therefore also a member of the same protected class as Lord and (b) it is a classic “stray remark” that is not actionable in any event.

Finally, Lord cannot establish a claim of retaliation. While it is true that Lord made a complaint of age discrimination in November 2025, that complaint was investigated and not substantiated. Nonetheless, Phillips – who was the same manager to whom Lord made the complaint – gave Lord an excellent performance evaluation and recommended her for an increase in her salary only weeks after she made her complaint. Lord was disciplined for her comments after she made her complaint for one simple reason – the Company learned of the false statements about 3 weeks *after* she made the complaint. In any event, as discussed above, the verbal warning that she received does not constitute an adverse employment action for purposes of an ADEA retaliation claim.

IV. CONCLUSION

In sum, Contender has established that none of the actions Lord complains of rise to the level of discrimination or retaliation under the ADEA and that any actions Contender has taken in this matter were done so for legitimate, non-discriminatory and non-retaliatory reasons.

Because Lord cannot present any credible evidence of discrimination or retaliation, the Contender requests the Commission issue a “no cause” determination and dismiss Lord’s Charge.

Sincerely,

A handwritten signature in black ink, appearing to read "Geo Reeves". The signature is fluid and cursive, with a long horizontal stroke at the end.

George A. Reeves III
Partner
For FISHER & PHILLIPS LLP

Enclosure (Exhibits 1-5)

EXHIBIT 1

EMPLOYEE HANDBOOK

AT-WILL DISCLAIMER

ALL EMPLOYEES OF THE COMPANY ARE EMPLOYEES-AT-WILL. THIS HANDBOOK OR ANY OF ITS SPECIFIC PROVISIONS ARE NOT TO BE CONSIDERED A CONTRACT OF EMPLOYMENT OR AS OTHERWISE ALTERING EMPLOYEE'S AT-WILL EMPLOYMENT STATUS IN ANY MANNER OR RESPECT. THE COMPANY RESERVES THE RIGHT TO TERMINATE ANY EMPLOYEE'S EMPLOYMENT AT ANY TIME FOR ANY OR NO REASON, WITH OR WITHOUT CAUSE AND WITH OR WITHOUT PRIOR NOTICE.

NOTHING IN THIS EMPLOYEE HANDBOOK IN ANY WAY CREATES AN EXPRESS OR IMPLIED CONTRACT OF EMPLOYMENT. THIS EMPLOYEE HANDBOOK MAY BE AMENDED, MODIFIED, OR TERMINATED AT ANY TIME. FURTHER, THE COMPANY RESERVES THE RIGHT TO EXERCISE TOTAL DISCRETION IN THE APPLICATION OF THIS HANDBOOK AND ITS SPECIFIC PROVISIONS.

ALL EMPLOYEES OF THE COMPANY ARE EMPLOYEES-AT-WILL. THIS HANDBOOK OR ANY OF ITS SPECIFIC PROVISIONS ARE NOT TO BE CONSIDERED A CONTRACT OF EMPLOYMENT OR AS OTHERWISE ALTERING EMPLOYEE'S AT-WILL EMPLOYMENT STATUS IN ANY MANNER OR RESPECT. THE COMPANY RESERVES THE RIGHT TO TERMINATE ANY EMPLOYEE'S EMPLOYMENT AT ANY TIME FOR ANY OR NO REASON, WITH OR WITHOUT CAUSE AND WITH OR WITHOUT PRIOR NOTICE.

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ACKNOWLEDGEMENT: I hereby acknowledge my status as an at-will employee of the Company, receipt of this Handbook, and understand it replaces and supersedes all previously issued handbooks, policies, procedures, and practices.

Signature: _____ Date: _____

Printed Name: _____

THIS EMPLOYEE HANDBOOK SUPERSEDES AND REPLACES ALL PREVIOUS EMPLOYEE MANUALS, HANDBOOKS OR PERSONNEL POLICIES, MEMORANDA, ETC.

Full-Time – Employees who are not temporary employees, independent contractors, or independent consultants and who are regularly scheduled to work at least 30 or more hours per week.

Part- Time – Employees who are not temporary employees, independent contractors, or independent consultants and who are regularly scheduled to work less than 30 hours per work week.

Temporary Employees – Employees who are hired as interim replacements to temporarily supplement the workforce or to assist in the completion of specific project. Employment assignments in this category are of limited duration, and all temporary employees are at-will, regardless of the anticipated duration of the assignment.

Independent Contractor or Consultant – These individuals are not employees of the Company and are self-employed. An independent contractor or consultant is engaged to perform a task according to their own methods and is subject to control and direction only as to the results to be accomplished. Independent contractors or consultants are not entitled to benefits, and the Company can terminate the contract at any time, with or without cause.

Each employee will be advised of his or her status at the time of hire and any change in status. Regardless of the employee's status, the employee is employed at-will, and the employment relationship can be terminated by the Company or the employee at any time, with or without cause.

4.0 EEO STATEMENT, AMERICANS WITH DISABILITIES ACT POLICY, & PREGNANCY RELATED MEDICAL ACCOMMODATIONS

4.1 EQUAL EMPLOYMENT OPPORTUNITY POLICY

In order to provide employment and advancement opportunities to all individuals, the Company strives to base employment decisions on merit, qualifications, and abilities. The Company does not discriminate in employment opportunities or practices on the basis of race, color, religion, gender, gender identity, sexual orientation, pregnancy, national origin, age, disability or any other characteristic protected by law.

Any employee with questions or concerns about any type of discrimination in the workplace is encouraged to bring these issues to the attention of their immediate supervisor or the CEO, President, or Executive Vice-President. Employees can raise legitimate concerns and make reports without fear of reprisal. Anyone found to be engaging in any type of unlawful discrimination will be subject to disciplinary action, up to termination of employment in the Company's sole discretion.

4.2 AMERICANS WITH DISABILITIES ACT POLICY

The Company complies with the Americans with Disabilities Act ("ADA") and strives to provide a work environment free from discrimination against qualified individuals with disabilities. We adhere to applicable federal, state, and local laws to offer equal employment opportunities to qualified individuals with disabilities. Reasonable accommodations may be provided for qualified individuals with

disabilities unless that accommodation produces an undue hardship or a direct threat to health or safety. Qualified individuals with disabilities should notify the Company of the need for such accommodation, in writing. Upon receipt of an accommodation request, the Company may meet with the requesting employee to discuss and identify the limitations of the employee's ability to perform the essential functions of his/her job and potential accommodation that the Company might make to help overcome those limitations without undue hardship to the Company or a direct threat to health or safety. The Company may also request one or more doctor's input, or the input of other professionals, with any medical records necessary to make decisions regarding the qualification of a condition as a disability under the ADA, specific job restrictions, the ability to continue or return to work with or without reasonable accommodation, and any other issues or recommendations that relate to the request for accommodation. However, the Company has the ultimate discretion as to whether a request for accommodation is reasonable.

4.3 PREGNANCY AND RELATED MEDICAL CONDITIONS ACCOMMODATIONS

The Company complies with the South Carolina Pregnancy Accommodations Act, the Pregnant Workers Fairness Act, the PUMP Act, and other similar state and federal laws where applicable, and will consider requests for reasonable accommodation for pregnancy-related medical conditions in accordance with those laws.

5.0 ATTENDANCE POLICY

Punctuality and regular attendance are essential to the successful operation of the Company's business. When you accept a position with our Company you assume obligations. One of those obligations is to perform the duties of your position during the times specified. You are expected to be punctual and keep absences to a minimum. Failure to report, unjustified or excessive absence or tardiness may result in discipline, up to and including discharge from employment. Additionally, punctuality and attendance are factors that may be taken into account when determining promotions, salary increases and qualification for other benefits.

Due to the nature of our business, certain positions will be required to work remotely or offsite. If you are classified as one of those employees, you must be actively performing your job duties and available during normal business hours to receive and respond to timely phone calls, emails, and texts. Failure to not be available or perform your job duties may result in discipline up to and including termination.

You may work from home on designated work from home days, and only days at the manager's or supervisor's discretion. You must inform your manager or supervisor in a timely manner of your intentions and reasoning.

Classifications of Absenteeism

Absenteeism generally refers to a circumstance in which an employee is habitually absent or not present at work during normally scheduled work hours. The employees' absences may be either scheduled or unscheduled.

- *Scheduled*: Absences typically scheduled in advance include vacation, medical appointments, military service, family activities, jury duty, funerals, and other events which cannot be scheduled outside of regular work hours.
- *Unscheduled*: Absences typically occur as a result of illness, family emergencies, transportation emergencies, family member illness and/or death, and household emergencies such as flooding.

Supervisors may designate absences are excused or unexcused.

- **Excused**: An excused absence is one which is scheduled and approved by the employee's manager in advance of the absence for such events as vacation, medical appointments, military service, jury duty, funerals, and events or activities which are scheduled outside of regular work hours. Unscheduled absences for illness, family member illness or death, and similar unanticipated circumstances may also be treated as "excused." Typically, there is no disciplinary consequence for an excused absence, unless the employee is habitually absent.
- **Unexcused**: An unexcused absence is one that is not approved by an employee's manager or embraced in the employer's policies and procedures. It may be more likely to lead to disciplinary consequences than an excused absence.

No-Call/No-Show - No-call/no-show refers to those instances where an employee does not call-in advance and fails to show during his/her workday schedule as well as when an employee calls in late but subsequently fails to show during his/her entire shift. Employees are expected to give the Company as much advance notice of a call out as possible, and in no event shorter than 24 hours prior to your shift, unless circumstances require it (i.e., person becomes sick 8 hours before shift).

No call/no show creates an administrative burden on fellow employees. It also impacts on our commitment to providing exceptional service to our clients. The first instance of a no-call/no-show may result in corrective action. The second separate offense may result in termination of employment with no additional corrective action steps. Any no-call/no-show lasting three consecutive days is considered job abandonment and could result in immediate termination of employment, which will be designated as a voluntary resignation. If the employee has already been issued corrective action for attendance when a no-call/no-show incident occurs, the corrective action process may be accelerated up to and including termination of employment.

6.0 HARASSMENT AND/OR DISCRIMINATION POLICY

The Company absolutely prohibits and will not tolerate any illegal discrimination or harassment in its workplace. Accordingly, all employees are expected to maintain a productive work environment free from harassing, discriminatory or disruptive activity. No form of harassment or discrimination will be tolerated, including, but not limited to, harassment or discrimination for the following reasons: race,

color, religion, sex, pregnancy, age, national origin, physical or mental disability, military status, gender identity, or sexual orientation.

The Company is committed to working to prevent such conduct, to investigate complaints of inappropriate conduct, and to remedy violations of this policy. If you reasonably believe that you have been subjected to any form of harassment, you should (1) affirmatively inform the offender/harasser that such conduct is unwelcome; and you must (2) report the incident immediately to your supervisor, HR, or the CEO. Further, if you witness harassing or discriminatory behavior, you are required to report it immediately to your supervisor, CEO, or Director of Human Resources. Employees should not allow any inappropriate situation to continue by not reporting it, regardless of who is creating that situation. No employee is exempt from the requirement to report conduct that may be in violation of this policy.

The Company will investigate complaints of harassment and/or discrimination and will make every attempt at being mindful of an employee's requests for discretion. Notwithstanding, the Company cannot promise complete confidentiality. The Company is required to investigate promptly and thoroughly, and this process may include interviewing relevant parties. Should an investigation disclose a violation of this policy, the Company will undertake appropriate corrective action designed to rectify the conduct and prevent any recurrence. Under no circumstances will the Company tolerate any retaliation against an individual for making a complaint, in good faith, under this policy or for participating in the investigation of any such complaint.

Any employee who engages in any prohibited conduct may be subject to discipline up to and including termination, in the sole discretion of the Company.

6.1 DEFINITIONS OF DISCRIMINATION AND HARASSMENT

"Discrimination" is defined as any unfavorable treatment that is based on race, color, sex, sexual orientation, gender identity, religion, national origin, disability, pregnancy, veteran or military status, age and/or any other categories protected by federal, state, or city ordinances.

"Harassment" is defined as unwelcome verbal or physical conduct that denigrates or shows hostility or aversion toward an individual because of his or her race, color, sex, religions national origin, disability, pregnancy, veteran or military status, age, and/or any other categories protected by federal, state, or city ordinances and that:

- Has the purpose or effect of creating an intimidating, hostile, or offensive working environment.
- Has the purpose or effect of unreasonably interfering with an individual's work performance.
- Otherwise adversely affects an individual's employment opportunities.

Examples of harassing and/or discriminatory conduct include, but are not limited to the following:

- Verbal comments, slurs, negative stereotyping, or threatening, intimidating, or hostile acts that relate to race, color, sex, religion, national origin, disability, pregnancy, veteran or military status, age, and/or any other categories protected by federal, state, or city ordinances.

- Written or graphic material that denigrates or shows hostility or aversion toward an individual or group because of race, color, sex, religion, national origin, disability, pregnancy, veteran or military status, age, and/or any other categories protected by federal, state, or city ordinances and that is placed on walls, bulletin boards, or elsewhere on our premises or is circulated in the workplace. This is mainly an example of discrimination.
- Unwelcome requests for sexual favors or sexual advances.
- Verbal harassment, comments directed towards a person's race, color, sex, religion, national origin, disability, pregnancy, veteran or military status, age, and/or any other categories protected by federal, state, or city ordinances or such as sexual innuendoes, suggestive comments, jokes of a sexual nature, sexual propositions or threats.

Because of our strong disapproval of offensive or inappropriate behavior at work, all employees must avoid any action or conduct which could be viewed as harassment of any kind.

Sexual Harassment

Sexual harassment is a form of sex discrimination, which is a violation of Title VII of the Civil Rights Act of 1964. The Equal Employment Opportunity Commission (EEOC) has defined sexual harassment as:

Unwelcome sexual advances, requests for sexual favors, and other verbal or physical conduct of a sexual nature constitute sexual harassment when:

- Submission to such conduct is made explicitly or implicitly a term or condition of an individual's employment.
- Submission to or rejection of such conduct by an individual is used as a basis for employment decisions affecting an individual.
- Such conduct has the purpose or effect of substantially interfering with an individual's work performance or creating an intimidating, hostile, or offensive working environment.

Examples of sexual harassment include but are not limited to the following:

- Unwanted physical contact or conduct includes flirting, touching, brushing the body, sexual advances or propositions.
- Verbal harassment of a sexual nature, such as lewd comments, sexual jokes or innuendo, jokes about gender-specific traits, or references to appearances.
- Insulting or sexually suggestive written, recorded or electronically transmitted messages.
- Display in the workplace of demeaning, insulting, intimidating, or sexually suggestive objects, pictures or photographs.

6.2 REPORTING HARASSMENT AND/OR DISCRIMINATION

If at any time you feel that you or any other employee has been subjected to discrimination or harassment of any nature, you must report the incident immediately to your supervisor, CEO, or Director of Human Resources. If, for any reason, you do not feel comfortable notifying your immediate supervisor about

the matter or if your supervisor is the offending party, you may notify any member of the management team. Employees are encouraged to make any such complaints in writing.

Early reporting and intervention have proven to be the most effective methods for resolving actual and/or perceived incidents of harassment and/or discrimination in the workplace. Therefore, while no specific time period for reporting harassment and/or discrimination has been established, the Company strongly urges all employees to promptly report any and all complaints or concerns immediately or as soon after as possible so that appropriate action can be taken as soon as possible and to prevent unwelcome conduct from becoming pervasive and/or severe.

6.3 RETALIATION

The Company prohibits any form of retaliation against any employee who reports a suspected incident of discrimination and/or harassment or who cooperates in an investigation of any such conduct. Any individual who violates this policy or retaliates against an employee in any way may be subject to disciplinary action, up to and including termination, in the sole discretion of the Company.

6.4 FALSE ACCUSATIONS

Retaliation or discrimination against an employee for reporting or complaining about harassment and/or discrimination is prohibited. However, the Company will not tolerate false accusations because they may have serious effects on innocent individuals. Making false accusations is a form of misconduct and may result in serious impairment of our efforts to administer this policy properly and effectively for the benefit of all employees. Accordingly, such misconduct may result in disciplinary action, up to, and including termination, in the sole discretion of the Company.

6.5 INVESTIGATIONS

The Company will take the necessary steps to promptly and impartially initiate an investigation into a discrimination and/or harassment claim and will conduct its investigation in as confidential and timely manner as possible. Once a resolution of each complaint is reached, the Company will then communicate its findings to the employee and any of the other parties involved.

All complaints of harassment and/or discrimination will be treated with discretion and as confidentially as possible, except as necessary to investigate the complaint or as required by law. Accordingly, the Company will attempt to investigate and resolve complaints of harassment and/or discrimination in a discrete manner. However, confidentiality cannot be guaranteed. When a supervisor, the CEO, or any other member of management is notified of alleged harassment and/or discrimination an investigation will take place as promptly as possible, which may involve interviewing relevant parties. Refusal to participate in an investigation may lead to disciplinary action up to and including termination.

6.6 RESOLUTION OF COMPLAINTS OF HARASSMENT AND/OR DISCRIMINATION

Misconduct constituting harassment, discrimination, and/or retaliation may be dealt with promptly and appropriately with the Company retaining the right to exercise discretion in deciding whether disciplinary action, up to and including termination, is appropriate. The Company may, within its sole discretion, take responsive action which it believes is appropriate under the circumstance. Such action may include any warning or disciplinary action, up to and including immediate termination, as The Company may decide in its sole discretion.

IMPORTANT NOTICE TO ALL EMPLOYEES: Employees who have experienced conduct they believe is contrary to this policy have an obligation to take advantage of the complaint process described in this policy. An employee's failure to fulfill this obligation and to avail themselves of the protections provided in this policy could affect his or her rights in pursuing future legal action.

7.0 DRUG AND ALCOHOL POLICY

The Company considers drug and alcohol abuse a serious matter that will not be tolerated. The Company absolutely prohibits employees from using, selling, possessing, or being under the influence of illegal drugs, alcohol, or a controlled substance or prescription drug not medically authorized while at their job, on Company property, or while on work time.

Therefore, it is Company policy that:

1. You may not report to work under the influence of alcohol, illegal drugs, or any controlled substance or prescription drug not medically authorized.
2. You may not possess or use alcohol, illegal drugs, or any controlled substance or prescription drug not medically authorized while on Company property or on Company business. We also caution against use of prescribed or over-the-counter medication, which can affect your ability to perform your job safely.

Reasonable suspicion

1. The Company will test employees for the presence of illegal substances or alcohol upon reasonable suspicion.

Post-Accident Drug Testing

1. In addition to the above, the Company will require employees to undergo testing immediately or as soon as practicable after any accident or incident in the workplace.

A violation of this policy may result in disciplinary action, up to and including termination of employment.

8.0 POLICY AGAINST VIOLENCE

The safety and security of our employees, clients, vendors, contractors, and the general public is of the highest importance to the Company. The Company is committed to working with our employees to provide a work environment free from violence, intimidation, and other disruptive behavior. Violating

EXHIBIT 2

CONTENDER AMERICA.

Elizabeth Langworthy Lord
109 Asteria Street
Greenville, SC 29617
Via Hand Delivery

November 24, 2025

RE: Notice of Claims dated November 14, 2025 and Related Materials (the “Notice”)

Dear Beth:

This letter will serve as the response of Contender Development, Inc. and the other entities you mentioned in the Notice (collectively, the “Company”). For the reasons that follow, the Company denies that any of your claims are actionable and respectfully declines your offer of a severance package.

The vast majority of the complaints set forth in the Notice are duplicative of concerns you have previously expressed. The Company has addressed them in an appropriate fashion as part of the ongoing interactive process between you and the Company.

While I will not attempt to refute every detail set forth in your Notice, I would like to take this opportunity to respond to your allegations of age-based comments:

You allege Peter Reinert made a comment expressing age animus during a meeting on or about April 25, 2025. Mr. Reinert denies making any such comment. I was present in that meeting and have no recollection of any such comment.

You allege over-hearing a conversation between Connor Parsons and Adam Plous regarding an older employee. Mr. Plous was not part of that conversation. Instead, it was between Mr. Parsons and myself where we were recounting our days in the hotel business and our preference for hiring older employees due to their skills and dependability. When I followed up with you later, you indicated that was not the conversation you were referring to, but you could not offer any additional details other than Messrs. Plous and Parsons were alleged to be discussing an employee at the Company’s North Charleston Element hotel; neither gentlemen has any recollection of such a conversation.

You allege that Haley Cape shared your age with other co-workers. Ms. Cape denies that occurred and stated she does not know your age.

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Last, your preservation request is acknowledged. The Company will adhere to its obligations under the law.

You obviously feel strongly that you have been treated unfairly by the Company and it is regrettable that you feel that way. However, the Company denies in the strongest possible terms that you have been discriminated against and respectfully submits that it has addressed your grievances and concerns in a timely and appropriate manner.

We very much hope you keep working at the Company. For that reason, we have no interest in engaging in discussions concerning a severance package as you have suggested.

My door is always open should you desire to discuss this letter or anything else for that matter.

Sincerely,

Cameron Aldridge
Human Resources Director

A handwritten signature in black ink that reads "Cameron Aldridge". The script is cursive and fluid, with the first letters of "Cameron" and "Aldridge" being capitalized and prominent.

EXHIBIT 3

**CONTENDER[®]
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**2025
Employee
Performance
Review Form**

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Employee Name: Elizabeth Lord	Position: Director of Marketing
Company: Contender America	Review Year: 2025
Manager Completing Review: Thomas Phillips	

The following section is based on a rating scale. Please provide the rating you feel you have excelled in:

Rating scale:

5= Excellent: (This rating is given to employees who consistently exceed expectations and go above and beyond their job requirements)

4= Very Good: (Employees receiving this rating have met or exceeded all expectations set for them in the workplace)

3= Satisfactory: (Employees with this rating are meeting all of their job requirements, but may not be excelling at any particular area of work performance)

2= Needs improvement: (These ratings indicate that an employee's performance needs improvement in order to meet expectations set by the company or team they are working on/for)

1= Poor: (This is a failing grade and means that an employee's performance has been subpar compared to what was expected from them in terms of quality, quantity, timeliness etc., and they need to take immediate action in order to improve)

Topic	Employee Self Score	Manager Score
Meets Deadlines: I meet the required deadlines of	5	5
Composure Under Pressure: When under pressure due to deadlines, outside factors, criticism, or other factors, I react calmly, thoughtfully, and professionally	4	5
Attention to Detail: My work is accurate and thorough	4	5
Collaboration: I work effectively with others and contribute to team efforts	5	5
Problem Solving: I provide solutions/options when encountering problems	5	5
Energy: I approach assignments, deadlines, and challenges vigorously and enthusiastically	5	5

Employee Comments on Self-Ratings

Meets Deadlines

Despite significant organizational changes and a major role shift, I consistently met deadlines on all key projects, including the website redesign, company deck update, video development, and event planning. This demonstrates my ability to deliver reliable performance even as expectations and workflows evolved.

Composure Under Pressure

Manager Comments on Employee Self-Ratings

BETH IS AN EXTREMELY HARD WORKER. AND HAS ~~BEEN~~ SURPASSED EXPECTATIONS SINCE COMING TO CONTENDER FULL TIME. I HAVE ENJOYED GETTING TO KNOW HER. SHE CONSISTENTLY MEETS DEADLINES AND HAS A CONSISTENT WORK ETHIC. SHE HAS ALSO TAKEN OWNERSHIP OF THE CONTENDER WEBSITE AND BRANDING, AND HAS DONE A FANTASTIC JOB. BETH HAS THE ABILITY TO ANTICIPATE AND EXECUTE MARKETING INITIATIVES ~~AND~~ CONSISTENTLY. JOB WELL DONE!

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The next section is conversational and allows employees and managers to provide comments to the following questions.

1. Reflecting on your time since you were first hired. How do you feel your role and experience have evolved to where you are today? Do you feel you are on track with your professional growth within the company, and how can your manager or company better support your career development?

Since joining the company, my role has evolved significantly, allowing me to contribute across residential, commercial, and development sectors. I've developed and executed strategic initiatives that have delivered substantial value, including:

- Creating the Masterclass series for agents, covering emerging topics like artificial intelligence to enhance agent capabilities
- Organizing The Summit, our annual corporate meeting with a vendor village that generates \$17,000 annually to offset event costs
- Producing five editions of Guided Luxury magazine, a bespoke branded publication for Blackstream valued at over \$68,000, delivered at no cost to the brokerage
- Managing marketing launches for 3 new office locations
- Developing comprehensive branding packages for 22+ agents

These accomplishments reflect CMO-level responsibilities that I've embraced with dedication and strategic thinking.

Regarding professional growth: While I'm proud of expanding my capabilities and delivering measurable results, I believe there's a misalignment between my current scope of responsibility and my formal title/compensation structure. To support my continued development and retention, I would benefit from:

- **Role clarity and formal recognition** of the strategic level at which I'm contributing
- **Professional development opportunities** such as industry conferences, advanced certifications, or executive training
- **Clear career pathway discussions** about progression within the organization
- **Resources and support** that match the scope of responsibilities I've assumed, including potential team support for execution of large-scale initiatives

I remain committed to driving value for the company and would welcome a conversation about aligning my role, growth trajectory, and support structure with the contributions I'm making.

Manager's Comments:

N/A

2. What skills do you have that you believe we could use more effectively?

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My background includes several capabilities that could be leveraged more strategically:

- **Investor Relations & Business Development:** I have extensive experience working directly with investors and delivering stakeholder pitches. This skill set could be valuable for capital raising initiatives, partnership development, or presenting the company's value proposition to potential strategic partners and high-net-worth clients.
- **Crisis Communications:** My formal training in crisis communications has proven valuable during challenging situations this year. This expertise could be utilized proactively by developing crisis response protocols, serving as a communications liaison during sensitive matters, or training leadership on reputation management strategies.
- **Strategic Storytelling:** My ability to translate complex business initiatives into compelling narratives—demonstrated through the Guided Luxury publications, investor presentations, and brand development work—could be applied more broadly to corporate communications, thought leadership content, and executive-level presentations.
- **Cross-Functional Leadership:** Having worked across residential, commercial, and development divisions (and being licensed in several states), I have a unique holistic understanding of the company's ecosystem. This perspective positions me well to lead integrated marketing campaigns, facilitate interdepartmental collaboration, or contribute to strategic planning discussions.

I'm eager to explore how these capabilities might align with the company's evolving priorities and would welcome a conversation about opportunities to contribute at a more strategic level.

Manager's Comments:

BETH HAS A RICH BACKGROUND IN MARKETING. I THINK IT WOULD BE IDEAL TO UTILIZE HER VAST EXPERIENCE AS CONTENDER CONTINUES TO GROW AND EXPAND.

3. Do you feel that you have the resources and tools you need to perform your job to the best of your abilities?

I have the necessary equipment and software to execute my responsibilities effectively. However, to maximize efficiency and impact, I would benefit from clearer operational frameworks in several areas:

- **Decision-Making Authority:** Establishing defined approval thresholds would allow me to move more quickly on routine marketing initiatives. For example, implementing a monthly employee newsletter or maintaining consistent social media presence currently requires executive approval for each post, which limits our ability to be timely and responsive. Delegated authority for standard communications would increase our agility while maintaining quality control through established brand guidelines.
- **Centralized Information Flow:** Access to a single point of contact or centralized system for project updates would significantly improve accuracy and efficiency. Currently, gathering information for website updates,

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content development, and marketing materials requires coordinating across multiple sources, which can delay deliverables and create gaps in our external communications.

- **Clear Content Ownership:** Clarification on content decision-making—particularly regarding which projects are featured on the website and how project information is prioritized—would help ensure our digital presence remains current and strategically aligned. Establishing a regular cadence for these updates would maintain momentum.

These structural improvements would enable me to be more proactive and responsive while ensuring marketing efforts remain aligned with leadership priorities.

Manager's Comments:

N/A

4. What are the areas requiring improvement in your job performance, and what skills have you improved since the last review period?

Skills Improved This Year:

Since the last review period, I've significantly expanded my technical capabilities to meet evolving business needs:

- **Design Software:** Independently learned Adobe Creative Suite and WIX platform management to take over design responsibilities
- **Video Production:** Working with a videographer, developed a strategic video from concept to digital product that included storytelling script, videographer supervision, voiceover, music, and editing.
- **Digital Platform Management:** Mastered WIX Classic to maintain and update our current website infrastructure
- **Cross-Platform Content Strategy:** Enhanced ability to adapt messaging across web, social media, print, and video formats while maintaining brand consistency

Areas for Continued Development:

To further enhance my effectiveness, I'm focused on advancing skills in:

- **Advanced Graphic Design:** Continuing to refine design expertise to maintain the high-level creative work the company now relies on internally. Professional development through courses or certifications in this area would be valuable.
- **Modern Web Platform Migration:** Planning to master the current version of WIX to transition our site from the outdated Classic version to a responsive, mobile-optimized platform. This is a priority for Q1-Q2 2025 and would benefit from allocated training time or resources.

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BETH HAS DONE A WONDERFUL JOB TRANSITIONING TO CONTENDER FULL TIME AND HAS PROVEN HERSELF IN DRIVING THE CONTENDER BRAND AS A WHOLE.

5. How effectively do you feel you've met your goals and responsibilities?

I'm proud of what I've accomplished this year, particularly given the significant organizational changes and changing scope of responsibilities. I successfully delivered on all major projects—from the website redesign and Guided Luxury publications to event management and agent branding—demonstrating my ability to execute at a high level even amid shifting priorities.

However, I believe I could contribute even more strategically with enhanced alignment on organizational objectives. Strategic planning is one of my core strengths, and I'm most effective when I have clear visibility into the company's broader goals and priorities. With that context, I can proactively develop marketing initiatives that directly support business objectives, anticipate needs, and allocate resources efficiently.

To maximize my effectiveness going forward, I would benefit from:

- Regular strategic alignment meetings with leadership to understand quarterly and annual priorities
- Inclusion in business planning discussions where marketing plays a role in execution
- Clear communication channels for accessing timely information about initiatives, timelines, and strategic shifts
- Defined success metrics so I can measure impact and adjust strategies accordingly

When I understand where we're headed as a company, I can ensure marketing efforts are not just reactive but strategically positioned to drive growth and support leadership's vision. I'm confident that with improved strategic alignment, my contributions can have even greater impact.

Manager's Comments:

AGAIN, BETH HAS EXCELLED IN HER TRANSITION OVER TO CONTENDER. SHE CONSISTENTLY MEETS DEADLINES AND IS EAGER TO ASSIST WHEREVER AND HOWEVER SHE IS NEEDED. I NEVER HAVE TO Worry IF BETH'S WORK WILL BE ~~DOE~~ COMPLETED TIMELY OR SMART.

6. Do you feel you communicate effectively with your manager and peers?

Yes. I've established strong working relationships across the organization that facilitate effective collaboration and communication.

I'm particularly grateful for Thomas Phillips' leadership and support during this transitional year. His accessibility, responsiveness, and genuine investment in my success have been invaluable as I've navigated significant role changes and integrated more fully into Contender. His guidance and willingness to provide clear

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direction have been instrumental in my ability to perform effectively, and his leadership style exemplifies the kind of collaborative environment where I do my best work.

I've also greatly appreciated building relationships with the lead directors, new employees, and accounting staff. These regular interactions have strengthened my understanding of how different divisions operate and have facilitated smoother cross-functional collaboration on projects. The professionalism of my colleagues have made it easy to communicate openly and work together effectively.

Moving forward, I'm eager to continue strengthening these relationships and expanding my collaborative network across the organization as opportunities arise.

Manager's Comments:

DETH IS EXCEPTIONAL AT KEEPING ME UP TO DATE ON HER WEEKLY TASKS AND INITIATIVES. I HAVE ENJOYED GETTING TO KNOW HER AND HER WORK.

7. How have you demonstrated initiative or ownership in your work?

I consistently operate with a proactive, self-directed approach, anticipating needs before they're articulated and positioning myself as a strategic partner to leadership.

Examples of initiative include:

- **Anticipatory Development:** I proactively created marketing assets leadership needed before being asked—such as developing pitch decks, updating branding materials, and preparing crisis communication scenarios when potential PR challenges emerged at Blackstream
- **Problem-Solving Ownership:** When faced with the loss of graphic design resources and website management, I independently acquired new technical skills and assumed CMO-level responsibilities to ensure continuity rather than waiting for direction
- **Strategic Program Development:** Conceived and launched initiatives like the Masterclass series and Bagel Fridays without prompting, identifying opportunities to add value to agent development and team culture
- **Resource Optimization:** Took ownership of high-value projects like Guided Luxury magazine and the website redesign, delivering professional-level work internally that saved tens of thousands in outsourcing costs
- **Solutions-Oriented Mindset:** My default response to challenges or new opportunities is "How can I help?"—reflecting my commitment to supporting the team and moving projects forward

I don't wait to be told what needs doing; I assess the landscape, identify gaps or opportunities, and take action. This ownership mentality has allowed me to deliver results even during periods of organizational uncertainty and limited guidance.

Manager's Comments:

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AGREED. BETH ANTICIPATES WHAT IS NEEDED
AND EXECUTES. SHE HAS DONE A FANTASTIC JOB ON
THE WEBSITE AND LOGO ROLLOUTS.

Employee signature:



Date:

10/17/2025

Manager signature:



Date:

12/15/25

EXHIBIT 4

CONTENDER AMERICA.

Disciplinary / Counseling Report

Occurrence Date: 12/15/25

Employee's Name: Elizabeth Lord

Employee's Job Title: Marketing Director

Manager Completing: Thomas Phillips

Category of Discipline/Counseling

- ☐ Coaching ☒ Verbal warning ☐ Written warning ☐ Final warning
- ☐ Suspension ☐ Termination
- _____ day(s)

Reason for Discipline/Counseling

- ☐ Habitual Tardiness and Absenteeism ☒ Conduct ☐ Safety violation
- ☐ Policy and/or procedure violation ☐ Unsatisfactory job performance ☐ Other:

Describe Details Leading to Discipline/Counseling

There have been multiple reports from employees that you have stated the company does not have sufficient payroll to pay staff and have advised them to update their résumés for other opportunities. Sharing unverified or false information about the company or engaging in behavior that may cause unnecessary concern among employees, is a violation of our Conduct Policy as outlined in the Employee Handbook.

Goals/Correcting Behavior

You are expected to refrain from sharing unverified, speculative, or inaccurate information about the company with coworkers. All concerns related to payroll or company operations must be directed to your supervisor or the HR department rather than discussed among employees. You must adhere to the company's Conduct Policy by avoiding gossip, rumors, or statements that may cause unnecessary concern. Going forward, you are required to demonstrate professional communication and contribute to a respectful, supportive work environment. Success will be measured by the absence of further reports of inappropriate communication and consistent use of appropriate channels for raising concerns.

You are formally being final warned to bring to your attention the severity of this situation. Failure to correct this behavior and/or further violation of company policy will result in additional disciplinary action up to and including discharge. By signing below you acknowledge that you have received this notice.

Employee Signature: Refused to Sign

Date: 12-15-25

Manager Signature: [Signature]

Date: 12/15/25

Witness Signature: [Signature]

Date: 12-15-25

EXHIBIT 5

From: [Stuart Owen](#)
To: [Cameron Aldridge](#); [Stuart Owen](#)
Cc: [Peter Reinert](#); [Christine Brodsky](#); [Michael Mumma](#)
Subject: Re: Recap Conversation 12.16.25
Date: Tuesday, December 16, 2025 2:56:06 PM
Attachments: [image001.png](#)
Importance: High

Good Afternoon,

Thank You for meeting with me, as I've stated in our meeting that I haven't expressed any comments or conversations regarding the financial state of the company to any employees, more that we are in a holding pattern on projects and no news is good news. I trust the leadership team to direct the company and have faith in the direction and outlook of the business moving into the near future.

I've never expressed to anyone regarding employment opportunities outside of any of the companies.

I am very satisfied with my role at Contender America and the divisions of contender and working alongside Blackstream International Real estate and look forward to the opportunity of growth within Contender and Blackstream in emerging markets and new opportunities in the new Year

Thank you for Your Time
Stuart Owen

From: Cameron Aldridge <Cameron.Aldridge@ContenderAmerica.com>
Sent: Tuesday, December 16, 2025 2:48 PM
To: Stuart Owen <Stuart.Owen@ContenderAmerica.com>
Cc: Peter Reinert <Peter.Reinert@ContenderAmerica.com>
Subject: Recap Conversation 12.16.25

Hi Stuart,

Thank you for taking the time to speak with me this afternoon. I wanted to provide a brief recap of our conversation.

We discussed concerns that had been raised regarding comments attributed to you about the company's financial status and statements suggesting that employees should consider seeking other opportunities. You indicated that you have not made such comments and expressed curiosity about the source of this information. I explained that, due to confidentiality requirements, I am unable to share the origin of the feedback.

You clarified that the only messaging you have shared with others is that the company is currently in a holding pattern, and you confirmed that you have never advised anyone to look for another job. I thanked you for your transparency and emphasized the importance of being mindful of messaging and audience when discussing company matters.

I also reiterated that the company is performing well and continuing to grow, and that there is no cause for concern. Employees are encouraged to direct any questions about the company to Peter or me directly.

Please feel free to reach out if you have any questions or need further clarification.

Thank you,

